

My name is Kelly Foster and I live in Frederick Maryland. Thank you for the opportunity to make public comment today. I attend many of the Frederick County Board of Elections meetings. Over time, I realized that decisions were being made in executive sessions after the open meeting was completed. I began filing complaints with the Open Meetings Compliance Board. The Compliance Board found that Frederick County has violated the Act 6 times.

In a recent opinion, the Compliance Board declined to find the Frederick County Board of Elections in violation when they did not provide documents which they planned to vote on during their meeting. The Compliance Board declined because the Act does not cover local boards of Election. The Local Boards of Election Transparency Act became Election law 2-208 last year and requires local boards to provide documents they plan to vote on during meetings.

I am asking that your board remind all local boards that they are required by Election Law 2-208 to provide documents to the public before taking a vote. I request that your board remind the local boards that Closing Statements are part of the public record and should be provided to the public when they are asked. Recently, Howard County would not even respond to a request for their closing statement during a recent complaint to the compliance board.

Transparency is essential in elections. SecurethevoteMD requested parity information on Election Judges from all jurisdictions. Only a handful of jurisdictions provided information. MPIA requests were ignored by many. Two counties required payment of more than \$300 for the lists to redact personal information, while others provided the information for free. Where is the equity?

I requested parity information from Frederick and was originally told there was no responsive document. When I pointed to Election Law 10-203, I was told that the Board has delegated the approval to the Election director. This seems to be a clear violation of Election Law and possibly the Open Meetings Act. Frederick was not the only county where the board never voted to approve Election Judge parity list during an Open meeting.

I thank you for addressing election judge party with policy 2025-04. Can something be done about Open Meetings Act Compliance for local boards?